

## 25STLC03020 25STLC03020

County: los-angeles

Division: Civil Law and Motion

Department: 25

Hearing date: 2026-09-01

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Case Number: 25STLC03020 Hearing Date: September 1, 2026 Dept: 25

HEARING DATE: Tues., September 1, 2026 JUDGE/DEPT: Eisenman/25

CASE NAME: Aspire

General Insurance Company v. Vera, et al.

COMP FILED: 04-16-25

CASE NUMBER: 25STLC03020

NOTICE: OK

PROCEEDINGS: MOTION TO COMPEL RESPONSES TO FORM INTERROGATORIES (ECONOMIC LITIGATION), SET ONE, SERVED ON DEFENDANT RICHARD ESPINOZA; MOTION TO DEEM ADMITTED REQUESTS FOR ADMISSION, SET ONE, PROPOUNDED ON DEFENDANT RICHARD ESPINOZA; REQUESTS FOR SANCTIONS

MOVING PARTY: Plaintiff

Aspire General Insurance Company

RESP. PARTY: None

MOTION TO COMPEL RESPONSES TO INTERROGATORIES; MOTION TO DEEM REQUESTS FOR ADMISSION ADMITTED; REQUEST FOR SANCTIONS

(Code Civ. Proc., §§ 2030.290, 2033.280)

TENTATIVE RULING:

The Court GRANTS Aspire  
General Insurance Company's motions. Richard  
Espinoza is ordered to serve verified responses without objections to the form  
interrogatories within 30 days of this order.  
The contents of Aspire's first set of requests for admission are deemed  
admitted.

Espinoza must pay  
Aspire \$980.00 within 30 days of this order.

Aspire is to give  
notice.

SERVICE:

☒ Proof of Service Timely Filed (CRC,  
rule 3.1300) OK

☒ Correct Address (CCP §§ 1013, 1013a)  
OK

☒ 16/21 Court Days Lapsed (CCP §§ 12c,  
1005(b)) OK

OPPOSITION: None  
filed as of August 26, 2026 ☐ Late ☒  
None

REPLY: None  
filed as of August 26, 2026 ☐ Late ☒  
None

ANALYSIS:

Aspire General Insurance Company filed this  
subrogation action against Amanda Vera and Richard Espinoza. Espinoza answered and Vera defaulted. Aspire then  
propounded 20 form  
interrogatories and 14 requests for admission on Espinoza. Espinoza failed to respond to the discovery  
requests, so Aspire moves to compel responses to the interrogatories and have

the requests for admission deemed admitted.

A party must respond to interrogatories within 30 days

after service of such interrogatories. (Code Civ. Proc., § 2030.260, subd. (a).) If the party fails to do so, it waives the right to object, and the propounding party may move for an order compelling responses to the interrogatories. (Id., § 2030.290, subds. (a), (b).)

A party must respond to requests for

admissions within 30 days after service of such requests. (Code Civ. Proc., § 2033.250, subd. (a).) If a party fails to do so, it waives the

right to object, and the propounding party may move for an order that the genuineness of any documents and truth of any matters specified in the requests be deemed admitted. (Id., § 2033.280, subd. (a), (b).)

Aspire served Espinoza with the form

interrogatories and requests for admission in April 2026. To date, no responses have been served. Espinoza has not filed an opposition

indicating otherwise. Accordingly, the

Court GRANTS Aspire's motions. Espinoza

is ordered to serve verified responses with objections to the form interrogatories within 30 days of this order.

The contents of Aspire's first set of requests for admission are deemed admitted.

Espinoza must also pay sanctions for

causing Aspire to move to compel responses and deem requests admitted. (Code Civ. Proc., § 2030.290, subd. (c); id., § 2033.280, subd. (c).)

Aspire requests a total of \$2,330.00 for the two motions, reflecting six hours for traveling to and from and attending the hearings at the rate of \$225.00 per hour, four hours for preparing the motions at the same rate, and \$80.00 in filing fees. Given the

similarity of the motions, the shared hearing date, and the routine nature of the motions, the Court finds the requested sanctions excessive. The Court thus awards Aspire sanctions in the reduced amount of \$980.00, reflecting four hours of work incurred at \$225.00, plus \$80.00 in filing fees. Espinoza must pay Aspire \$980.00 within 30 days of this order.

Aspire is to

give notice.